GLOUCESTER
ZAKAT FUND
CHARITY FOR LOCAL RESIDENTS

DATA PROTECTION POLICY

Document Information	
Policy Name	Data Protection Policy
Version	1.0
Policy Owner	Board of Trustees
Data Protection Lead	**Abdullah AS Patel**
Approved by	Board of Trustees
Date Approved	01/02/2026
Next Review Date	01/02/2028
Related Policies	Safeguarding Policy, Social Media Policy, Volunteer Management Policy, Complaints Policy

1. Introduction

Gloucester Zakat Charity ("the Charity") is a Charitable Incorporated Organisation established to prevent and relieve poverty and financial hardship in Gloucestershire and the wider United Kingdom, with a particular focus on members of the Muslim community. The Charity collects and distributes Zakat (obligatory Islamic almsgiving) and Sadaqah (voluntary charity) to eligible beneficiaries.

In carrying out its charitable purposes, the Charity collects and processes personal data about beneficiaries, donors, volunteers, trustees, and others. The Charity takes its data protection responsibilities seriously and is committed to protecting the privacy and rights of individuals whose data it holds.

This policy sets out how the Charity collects, uses, stores, and protects personal data in compliance with the UK General Data Protection Regulation (UK GDPR) and the Data Protection Act 2018.

2. Purpose

The purpose of this policy is to:

- Ensure the Charity complies with data protection law
- Protect the rights and privacy of individuals whose data the Charity holds
- Provide guidance to trustees and volunteers on their data protection responsibilities
- Establish clear procedures for handling personal data
- Maintain trust and confidence in the Charity

3. Scope

This policy applies to:

- All trustees and volunteers of the Charity
- All personal data held by the Charity, in whatever format (paper or electronic)
- Personal data about beneficiaries, donors, volunteers, trustees, partners, and any other individuals
- All processing of personal data by or on behalf of the Charity

4. Legal Framework

The Charity's data protection obligations arise primarily from:

- **UK General Data Protection Regulation (UK GDPR):** The UK's data protection framework following Brexit, which sets out principles for processing personal data and the rights of individuals
- **Data Protection Act 2018:** The UK legislation that supplements the UK GDPR and sets out additional provisions, including exemptions and special processing conditions
- **Privacy and Electronic Communications Regulations 2003 (PECR):** Regulations covering electronic marketing communications

The Charity is a "data controller" under data protection law, meaning it determines the purposes and means of processing personal data and is responsible for compliance.

5. Key Definitions

Personal data: Any information relating to an identified or identifiable living individual. This includes names, addresses, email addresses, telephone numbers, financial information, photographs, and any other information that can identify a person directly or indirectly.

Special category data: Personal data that is more sensitive and requires additional protection. This includes data about racial or ethnic origin, religious or philosophical beliefs, health, sex life or sexual orientation, genetic data, biometric data, trade union membership, and political opinions.

Processing: Any operation performed on personal data, including collecting, recording, storing, using, sharing, amending, and deleting.

Data subject: The individual whose personal data is being processed.

Data controller: The organisation that determines why and how personal data is processed. The Charity is a data controller.

Data processor: An organisation that processes personal data on behalf of a data controller.

6. Data Protection Principles

The Charity will comply with the seven data protection principles set out in UK GDPR. Personal data must be:

- **Processed lawfully, fairly and transparently:** We will only process personal data where we have a lawful basis to do so, and we will be open and honest about how we use personal data
- **Collected for specified, explicit and legitimate purposes:** We will only collect personal data for clear, specific purposes and will not use it in ways that are incompatible with those purposes
- **Adequate, relevant and limited to what is necessary:** We will only collect the personal data we need for the purpose and will not collect excessive data
- **Accurate and kept up to date:** We will take reasonable steps to ensure personal data is accurate and will correct or delete inaccurate data
- **Kept for no longer than necessary:** We will only keep personal data for as long as we need it for the purpose for which it was collected
- **Processed securely:** We will use appropriate technical and organisational measures to protect personal data against unauthorised access, loss, or damage
- **Accountability:** We will be able to demonstrate compliance with these principles

7. Lawful Bases for Processing

The Charity will only process personal data where it has a lawful basis to do so. The lawful bases most relevant to the Charity's work are:

- **Consent:** The individual has given clear consent for the Charity to process their personal data for a specific purpose
- **Contract:** Processing is necessary for a contract the Charity has with the individual, or because they have asked the Charity to take specific steps before entering into a contract
- **Legal obligation:** Processing is necessary for the Charity to comply with the law (for example, maintaining financial records for HMRC)
- **Vital interests:** Processing is necessary to protect someone's life

- **Legitimate interests:** Processing is necessary for the Charity's legitimate interests or the legitimate interests of a third party, unless there is a good reason to protect the individual's personal data which overrides those interests

8. Special Category Data

The Charity processes some special category data in carrying out its charitable purposes. This includes:

- **Religious belief:** Information about whether a beneficiary is Muslim (relevant to Zakat eligibility)
- **Health data:** Information about health conditions that may be relevant to assessing need
- **Racial or ethnic origin:** Information that may be collected as part of understanding beneficiary demographics or needs

To lawfully process special category data, the Charity must have both a lawful basis under Article 6 of UK GDPR and a separate condition under Article 9. The conditions most relevant to the Charity are:

- **Explicit consent:** The individual has given explicit consent to the processing
- **Legitimate activities of a not-for-profit body:** Processing is carried out by a not-for-profit body with a religious aim, relates only to members or former members (or those with regular contact), and the data is not disclosed outside the organisation without consent
- **Substantial public interest:** Processing is necessary for reasons of substantial public interest, as set out in the Data Protection Act 2018
- **Vital interests:** Processing is necessary to protect someone's life where they cannot give consent

The Charity will handle special category data with particular care and will ensure appropriate safeguards are in place.

9. What Personal Data the Charity Collects

9.1 Beneficiary Data

The Charity collects information about beneficiaries to assess eligibility for Zakat or Sadaqah support and to provide assistance. This may include:

- Name and contact details (address, telephone, email)
- Family composition and dependants
- Financial circumstances (income, debts, assets, benefits received)
- Religious belief (for Zakat eligibility)
- Immigration status (where relevant to eligibility)
- Health information (where relevant to assessing need)
- Bank details (for payment of grants)
- Records of assistance provided

9.2 Donor Data

The Charity collects information about donors to process donations, claim Gift Aid, and maintain relationships. This may include:

- Name and contact details
- Bank or payment details
- Gift Aid declarations
- Donation history and preferences
- Communication preferences

9.3 Trustee and Volunteer Data

The Charity collects information about trustees and volunteers to manage their involvement. This may include:

- Name and contact details
- Date of birth
- DBS check information (where required)
- Emergency contact details
- Bank details (for expense reimbursement)
- Training records
- Trustee declarations of eligibility

10. Data Subject Rights

Individuals whose personal data the Charity holds have rights under data protection law. The Charity will respect and facilitate these rights:

- **Right to be informed:** Individuals have the right to be told how their data is being used. The Charity will provide this information through privacy notices
- **Right of access:** Individuals can request a copy of the personal data the Charity holds about them (a "Subject Access Request")
- **Right to rectification:** Individuals can ask the Charity to correct inaccurate or incomplete data
- **Right to erasure:** In certain circumstances, individuals can ask the Charity to delete their personal data
- **Right to restrict processing:** In certain circumstances, individuals can ask the Charity to limit how their data is used
- **Right to data portability:** In certain circumstances, individuals can ask for their data to be transferred to another organisation
- **Right to object:** Individuals can object to certain types of processing, including processing for direct marketing
- **Rights related to automated decision-making:** Individuals have rights in relation to automated decision-making and profiling

Requests to exercise these rights should be made to the Data Protection Lead. The Charity will respond to requests within one month, or inform the individual if more time is needed.

11. Consent

Where the Charity relies on consent as the lawful basis for processing, it will ensure that:

- Consent is freely given, specific, informed, and unambiguous
- Consent is given by a clear affirmative action (not pre-ticked boxes or silence)
- Individuals are told what they are consenting to and can easily withdraw consent at any time

- Records of consent are kept
- Consent is reviewed and refreshed where appropriate

Withdrawing consent is as easy as giving it. Individuals can withdraw consent by contacting the Charity. Where consent is withdrawn, the Charity will stop processing the data for that purpose, unless there is another lawful basis for continuing.

12. Data Security

The Charity will implement appropriate technical and organisational measures to protect personal data. These include:

- **Physical security:** Paper records containing personal data are kept in locked storage when not in use
- **Electronic security:** Electronic data is protected by passwords, and devices are kept secure
- **Access controls:** Access to personal data is limited to those who need it for their role
- **Secure communication:** Sensitive personal data is not sent by unencrypted email where possible
- **Secure disposal:** Personal data is securely destroyed when no longer needed (shredding paper records, secure deletion of electronic files)
- **Training:** Trustees and volunteers are made aware of their data protection responsibilities

13. Data Retention

The Charity will not keep personal data for longer than is necessary. Retention periods depend on the type of data and the purpose for which it is held:

- **Beneficiary records:** Retained for 6 years after the last contact or assistance provided
- **Donor records and Gift Aid declarations:** Retained for 6 years after the last donation (to meet HMRC requirements)
- **Financial records:** Retained for 6 years (to meet legal and accounting requirements)
- **Volunteer and trustee records:** Retained for 6 years after the individual leaves their role
- **DBS check records:** Certificate details are not retained; only a record that a check was carried out and the result
- **Unsuccessful applications for assistance:** Retained for 2 years

At the end of the retention period, personal data will be securely deleted or anonymised.

14. Data Sharing

The Charity may share personal data with third parties in certain circumstances:

- **Partner organisations:** With organisations such as GARAS, local mosques, or other partners where this is necessary to provide assistance to beneficiaries, and with the individual's knowledge or consent
- **Regulatory bodies:** With the Charity Commission, HMRC, or other bodies where required by law
- **Service providers:** With third parties who provide services to the Charity (such as payment processors or IT services), under appropriate contractual arrangements

- **Safeguarding:** With police, social services, or other agencies where necessary to protect someone from harm
- **Legal proceedings:** Where required by law or to protect the Charity's legal rights

The Charity will not sell or share personal data with third parties for their marketing purposes.

15. International Transfers

The Charity operates in the United Kingdom and does not normally transfer personal data outside the UK. If it becomes necessary to transfer data internationally, the Charity will ensure appropriate safeguards are in place as required by UK GDPR.

16. Data Breaches

A personal data breach is a breach of security leading to the accidental or unlawful destruction, loss, alteration, unauthorised disclosure of, or access to, personal data. Examples include losing a laptop containing personal data, sending an email to the wrong person, or a cyber-attack.

If a trustee or volunteer becomes aware of a potential data breach, they must:

- Report it immediately to the Data Protection Lead or Chair
- Not attempt to investigate or resolve the breach themselves
- Preserve any evidence relating to the breach

The Data Protection Lead will assess the breach and determine the appropriate response. Where a breach is likely to result in a risk to individuals' rights and freedoms, the Charity must report it to the Information Commissioner's Office (ICO) within 72 hours. Where a breach is likely to result in a high risk, affected individuals must also be notified.

The Charity will maintain a record of all data breaches, including those that do not need to be reported to the ICO.

17. Privacy Notices

The Charity will provide privacy notices to individuals at the point of data collection, explaining how their personal data will be used. Privacy notices will be clear, concise, and easily accessible.

The Charity will maintain separate privacy notices for beneficiaries, donors, and volunteers, reflecting the different ways their data is collected and used.

18. Responsibilities

18.1 Board of Trustees

The Board is responsible for:

- Ensuring the Charity complies with data protection law
- Approving this policy and reviewing it regularly
- Appointing a Data Protection Lead
- Ensuring adequate resources and training for data protection compliance
- Responding to data breaches and other data protection incidents

18.2 Data Protection Lead

The Board will appoint a trustee as Data Protection Lead. The Data Protection Lead is responsible for overseeing day-to-day compliance, being the point of contact for data subject requests and queries, advising on data protection matters, and reporting to the Board on compliance.

18.3 All Trustees and Volunteers

All trustees and volunteers are responsible for:

- Complying with this policy and data protection law
- Only accessing personal data that they need for their role
- Keeping personal data secure
- Reporting any data protection concerns or potential breaches
- Completing any required data protection training

19. Training

All trustees and volunteers will be made aware of this policy and their data protection responsibilities as part of their induction. Additional training will be provided where appropriate, particularly for those handling sensitive personal data.

20. Complaints

If an individual has a complaint about how the Charity has handled their personal data, they should raise it with the Data Protection Lead in the first instance. If the complaint cannot be resolved, they have the right to complain to the Information Commissioner's Office (ICO). Contact details for the ICO are: ico.org.uk, telephone 0303 123 1113.

21. Review

This policy will be reviewed by the Board of Trustees every two years, or sooner if there are significant changes to data protection law, ICO guidance, or the Charity's data processing activities.

22. Related Guidance

Information Commissioner's Office (ICO):

- Guide to the UK GDPR
- Guide to data protection for organisations
- Lawful basis interactive guidance tool
- Data protection self-assessment toolkit
- Personal data breach reporting

Charity Commission:

- Protecting charity information
- Managing a charity's finances

23. Approval and Version History

Version	Date	Approved By	Changes
1.0	01/02/2026	Board of Trustees	Initial policy

24. Trustee Declaration

We, the undersigned trustees of Gloucester Zakat Charity, confirm that we have read, understood, and approved this Data Protection Policy and commit to its implementation.

Name	Role	Signature	Date
Mr Abdullah Abdul Samad Patel	Chair	A. Patel	01/02/2026
Mr Kamel Boulkenafet	Trustee	K. Boulkenafet	01/02/2026
Mr Hashim Moolla	Trustee	H. Moolla	01/02/2026
Mr Farouq Ginwalla	Trustee	F. Ginwalla	01/02/2026
Ms Mariam Qureshi	Trustee	M. Qureshi	01/02/2026

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